STANDARD OPERATING PROCEDURE	G-5700

	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 12/04/06	DATE REVISED **03/03/17**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		

CHAPTER TITLE GENERAL	RESOURCES FOP CONTRACT
SUBJECT HOURS OF WORK/OVERTIME	CROSS REFERENCE

I. Purpose:

The purpose of this policy is to establish the guidelines for hours of work and overtime compensation.

II. Policy:

The Sarpy County Sheriff's Office operates 24 hours per day, 7 days per week. Work performed by employees in excess of regularly scheduled hours shall be paid in accordance with the current FOP contract. The Sheriff's Office shall also limit the number of hours and days an employee may work to ensure safety and efficiency.

III. Procedures:

A. Hours of Work:

1. No more than fourteen (14) hours per twenty-four (24) hour period shall be worked by any employee of the Sheriff's Office including scheduled hours and off-duty employment, without prior authorization of a command officer or supervisor. Any hours worked in excess of fourteen (14) without prior approval shall not be compensated.

2. No more than seven (7) consecutive days shall be worked by any employee of the Sheriff's Office. The seven (7) days shall include partial shifts worked. The seven (7) days does not include pre-approved off-duty employment.

3. No more than seventy (70) hours per one hundred and sixty eight (168) hour period shall be worked by any member of the Sheriff's Office. The seventy (70) hours includes scheduled hours, overtime hours and off-duty employment.

4. It is the responsibility of the employee to notify his or her supervisor, division commander or the ADC if he or she has reached their limit on hours of work as described in sections 1 and 3 above.

5. The Sheriff or his designee may supersede this policy in the event of an emergency.

B. **Overtime Hours:** Employees shall obtain approval from a supervisor or command officer prior to working overtime hours.

1. Immediate approval is not necessary if the overtime involves an arrest, call for service, or an emergency situation occurring at the end of a shift. The employee shall contact the on-duty supervisor as soon as possible for continued overtime approval or assignment of alternate personnel.

2. Employees are expected to complete reports during duty hours whenever practical. Overtime shall not be approved when it is evident the employee had sufficient opportunity to complete reports during his or her duty shift.

3. If personnel shortages occur, a shift supervisor has the authority to order additional personnel to duty.

4. When ordering personnel into work it shall be on a fair, equitable and rotational basis.

5. Sworn employees shall be compensated at a rate of one and one-half (1 ½) times for the number of hours worked in excess of eighty (80) hours per pay period. Non-sworn employees shall be compensated at a rate of one and one-half (1 ½) times for the number of hours worked in excess of forty (40) hours per calendar week.

6. If a full-time employee or nurse is called to duty (i.e. call-back) during his or her off-duty time and such time does not coincide with his or her scheduled tour of duty, such employee shall be paid for a minimum of two (2) hours at the rate of time and one-half (1 ½) or one and one-half (1 ½) the actual number of hours worked, whichever is greater. This provision shall also include any in-house training or scheduled meetings.

7. Employees attending training outside the county shall be paid at their applicable rate of pay while in attendance, but shall not be entitled to overtime, call-back or holiday pay.

8. If the employee stays after the end of the shift, the time worked is not considered call-back and the employee shall only be compensated at the applicable rate for the actual time worked. This also applies should an

employee be scheduled to attend court before or coinciding with the end of the employee's duty shift.

9. Overtime compensation shall be rounded to the nearest quarter (1/4) of an hour in all situations. If an employee works seven (7) minutes past the end of his or her shift, he or she shall not be compensated. If an employee works eight (8) minutes past the end of his or her shift, he or she shall receive a quarter (1/4) hour of compensation at one and one-half (1 ½) times. If an employee works twenty-two (22) minutes past the end of his or her shift, he or she shall receive a quarter (1/4) of an hour of compensation at one and one-half (1 ½) times. If an employee works twenty-three (23) minutes past the end of his or her shift, he or she shall receive a half (1/2) of an hour of compensation at one and one-half (1 ½) times. (see Overtime Computation chart at the end of this policy).

C. Submission of Overtime: Any employee working overtime hours shall submit an Overtime entry in "Employee Timecard Entry" in OSL.

1. Overtime entries shall be approved by a supervisor in OSL.

2. Overtime Request forms shall be submitted immediately following the completion of the overtime or by the employee's next duty shift.

3. Employees shall list the actual hours worked on the Overtime entry even if they are compensated for a minimum of two (2) hours (e.g. employee attends court from 1200-1300 hours, he or she would still be compensated for two (2) hours at one and one-half (1 ½) times, but would list 1200-1300 in the start/end time section of the overtime entry in OSL).

4. It shall be the responsibility of the employee to verify his or her overtime has been entered correctly. Any discrepancies shall be brought to the attention of the administrative division as soon as possible, but prior to the annual data conversion (i.e.: January 1st). The overtime records of all employees shall be kept on file for no less than three (3) years.

D. Court Overtime:

1. Any employee required to attend as a witness or in any other capacity directly related to his or her official duties, any case pending in the Juvenile Court, County Court, District Court, or before any Grand Jury proceedings or in conferences with the County Attorney or their respective assistants, or at any proceedings by any city, county, state or federal government or any of the subdivisions of agencies thereof, during off-duty periods, shall be entitled to overtime compensation at the rate of one and one half (1 ½) times

their regular rate of pay for a minimum of two (2) hours or one and one half (1 ½) times the actual number of hours worked, whichever is greater.

2. If an employee is required to testify at an ALR hearing and the hearing is held telephonically, the employee shall be paid at a rate of time one and one half (1 ½) times their regular rate of pay for a minimum of forty (40) minutes or one and one half (1 ½) times their regular rate of pay for the actual number of hours worked, whichever is greater.

3. Employees submitting an Overtime Request in OSL for a court appearance (including ALR hearings) or cancellation shall in addition, submit their /court notice/subpoena to their supervisor after being signed by the attorney responsible for the case.

4. Employees shall be entitled to compensation (two (2) hours at one and one half (1 1/2/) times) for a scheduled court appearance unless such employee is notified twelve (12) hours prior to the set time of the hearing that the hearing has been cancelled.

5. When an employee is called as a witness in connection with his or her official duties, the employee shall forward any witness fees to the Accounts Payable Clerk.

Overtime Computation
(1 ½ times)

# of Hours Worked	Total Overtime	# of Hours Worked	Total Overtime	# of Hours Worked	Total Overtime	# of Hours Worked	Total Overtime
.25	.375	.5	.75	.75	1.125	1	1.5
1.25	1.875	1.5	2.25	1.75	2.625	2	3
2.25	3.375	2.5	3.75	2.75	4.125	3	4.5
3.25	4.875	3.5	5.25	3.75	5.625	4	6
4.25	6.375	4.5	6.75	4.75	7.125	5	7.5
5.25	7.875	5.5	8.25	5.75	8.625	6	9
6.25	9.375	6.5	9.75	6.75	10.125	7	10.5
7.25	10.875	7.5	11.25	7.75	11.625	8	12
8.25	12.375	8.5	12.75	8.75	13.125	9	13.5
9.25	13.875	9.5	14.25	9.75	14.625	10	15
10.25	15.375	10.5	15.75	10.75	16.125	11	16.5
11.25	16.875	11.5	17.25	11.75	17.625	12	18